



CHAPTER xxxii.

An Act to empower the Central London Railway Company to enlarge a portion of their railway tunnels to construct new subways and works and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS the Central London Railway Company (in this Act called "the Company") under the powers conferred by the Central London Railway Acts 1891 to 1913 have constructed an underground railway between Wood Lane Shepherd's Bush and Liverpool Street and are authorised to construct extensions of their railway to the Ealing and Shepherd's Bush Railway of the Great Western Railway Company and to the London and South Western Railway at Gunnersbury:

And whereas it would be of public advantage and render more convenient the access to certain of their stations and the interchange of traffic between their railway and other railways if the Company were authorised to enlarge a portion of the tunnels of their railway and to construct the new subways and other works in this Act described:

And whereas it is expedient that the Company the Metropolitan District Railway Company the City and South London Railway Company and the London Electric Railway Company should be empowered to enter into and carry into effect agreements with reference to the construction maintenance ventilation erection occupation and user of subways passages escalators offices and buildings for and in connection with the carrying on of their respective undertakings:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans of the lands by this Act authorised to be acquired and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands

A.D. 1914. required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of London and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas it is expedient that the Company the Metropolitan District Railway Company the City and South London Railway Company and the London Electric Railway Company should be authorised to apply their funds for the purposes of this Act and that the Company should be empowered to raise additional capital for those purposes and for the general purposes of their undertaking and that the other powers contained in this Act should be conferred upon the Company :

And whereas it is expedient that the Company should be empowered to issue warrants and certificates to bearer for stock or shares or debenture stock and that the provisions in this Act contained with respect to such warrants and certificates and the bearers thereof should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the Central London Railway Act 1914 and the Central London Railway Acts 1891 to 1913 and this Act may be cited together as the Central London Railway Acts 1891 to 1914.

Incorporation of
general Acts.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts ;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the following matters or contained in the following sections thereof (that is to say) :—

The construction of the railway and the works connected therewith ;

The settlement of disputes by arbitration ;

Sections 138 and 139 (as to service of notices and tender of amends) ; and

The recovery of damages not specially provided for and of penalties and the determination of any other matter referred to justices; A.D. 1914.

And for the purposes of the application of the said provisions to this Act the enlargement of tunnels by this Act authorised shall be deemed to be a railway; and

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested; and

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And— Interpretation.

The expression “the enlargement of tunnels” means the enlargement of the tunnels of the Company’s railway by this Act authorised;

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The expressions “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerk of the city of London and the town clerks of the metropolitan boroughs; and

The expressions “the Act of 1891” “the Act of 1892” “the Act of 1902” “the Act of 1907” “the Act of 1909” and “the Act of 1913” respectively mean the Central London Railway Acts 1891 1892 1902 1907 1909 and 1913 respectively.

Power to
make works.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described with all necessary and proper tunnels stations platforms sidings approaches stairs passages subways shafts lifts escalators stagings buildings apparatus plant machinery appliances works and conveniences connected therewith and may subject as aforesaid enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes:

Provided always that nothing in this Act shall authorise the Company except for the purpose of making trial borings and except as provided by the section of this Act of which the marginal note is “Restrictions on breaking up surface of streets” to enter upon take or use the surface of any public street or road but (subject as aforesaid) the Company may appropriate and use without payment of compensation therefor the subsoil and under surface of any public street road footway or place shown on the deposited plans and described in the deposited book of reference or so much thereof as shall be necessary for the purposes of the Company.

Description
of works.

5. The works hereinbefore referred to and authorised by this Act will be situate in the county of London and are—

An enlargement of the tunnels of the Company’s railway (five chains in length) commencing at a point in or under High Holborn at its junction with Kingsway and terminating at a point in or under High Holborn forty-three yards or thereabouts east of New Turnstile:

A Subway (No. 1) commencing in the booking-hall of the Shepherd’s Bush Station of the Company at a point thirty-one yards or thereabouts north of Uxbridge Road and

terminating in or under the pavement on the north side of that road nine yards or thereabouts east of Providence Place: A.D. 1914.

A Subway (No. 2) commencing in the booking-hall of the Oxford Circus Station of the Baker Street and Waterloo Railway at a point four yards or thereabouts south of Oxford Street and terminating in or under Oxford Street at a point twenty-three yards or thereabouts west of Hills Place:

A Subway (No. 2A) commencing in the booking-hall of the Oxford Circus Station of the Company at a point twenty-nine yards or thereabouts south of Oxford Street and terminating in or under Oxford Street at a point sixteen yards or thereabouts west of Argyll Street:

A Subway (No. 3) commencing in the booking-hall of the Bank Station of the Company at a point at or under the junction of Princes Street and Threadneedle Street and terminating in or under Threadneedle Street at a point thirty-nine yards or thereabouts east of Princes Street.

6. The enlargement of tunnels shall be carried out in the following manner (that is to say):— General provisions as to mode of construction of enlargement of tunnels.

The cast-iron rings forming the lining of the existing tunnels shall be taken out one by one and sufficient soil excavated to allow the plates to be fixed in their new position:

Each new ring shall be placed in position as soon as possible after the removal of the existing ring and in no distance of eighty feet shall more than three rings (which rings shall be consecutive rings) of lining or a length of five feet be removed without immediately fixing the substituted lining and all lining shall consist of iron or other sufficient metal plates properly jointed throughout:

Any space between the lining of the tunnels and the surrounding soil shall be properly filled up with lime or cement grouting placed therein under pressure as and when each ring is bolted up:

The enlarged tunnels shall not have an internal diameter exceeding thirty feet.

Except in the case of unforeseen accident or for the purpose of removing rainwater or other trifling amounts of water no use shall be made of pumping or of other like modes of removing water from the said tunnels.

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As to cesser
of working.

7. The Company may during the construction of the enlargement of tunnels or of any works incidental or ancillary thereto wholly or partially stop or suspend the working or user of their railway or any portion thereof and may upon the completion of the enlargement of tunnels close and abandon their existing British Museum Station without being subject to any liability penalty or forfeiture by reason or in consequence of any such stoppage suspension closing or abandonment.

Period for
completion
of enlarge-
ment of
tunnels.

8. If the enlargement of tunnels is not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Plans &c.
to be ap-
proved by
Board of
Trade before
works com-
menced.

9. The Company shall submit for the approval of the Board of Trade plans sections and other details of their proposals with respect to (A) tunnels platforms stairs lifts escalators and other communications (B) lighting and (C) ventilation and the works shall be constructed only in accordance with the plans sections and other details as approved by the Board of Trade.

Compensa-
tion for dam-
age by
working.

10.—(1) In addition to the provisions of the Acts incorporated herewith with respect to compensation for lands taken or injuriously affected the Company shall make compensation to the owner lessee and occupier of any land house or building which shall be injuriously affected by reason either of the working of the railway (including the working of lifts escalators and any other works in connection with the said railway) under the altered conditions authorised by this Act or of the working of the subways by this Act authorised notwithstanding that no part of the property of such owner lessee or occupier is taken by the Company Provided that all claims for compensation under this section shall be made within two years from the time when the Company shall first open a station in the enlargement of tunnels or (as the case may be) of the opening of the said subways respectively for the use of passengers and shall be settled by a single arbitrator under and subject to the provisions of the Arbitration Act 1889 save that where the parties do not concur in the appointment of an arbitrator the Board of Trade shall have the power of the court or a judge under section 5 of the said Act.

(2) An arbitrator under this section may with the consent of all parties concerned hear together any class or group of claims under this section. A.D. 1914.

11. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

12. The Company may acquire by agreement and hold for the purposes of their undertaking any interest less than the fee simple in any lands and in any easement under any lands which they are authorised to acquire under the powers of this Act. Power to acquire leasehold interests and use lands held on lease.

13. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

14. With respect to the properties shown on the deposited plans which are described or referred to in the First Schedule to this Act notwithstanding anything contained in this Act or the said plans the Company shall not be required to purchase or take the same or any part of the surface thereof but the Company may purchase and take and the owners of and other persons interested in any such property shall sell an easement or right of using the subsoil and under surface thereof for the purposes of the undertaking of the Company and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such easement or right of user except that no such easement or right of user shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 and that any question of disputed purchase money or compensation under this section shall be settled by arbitration in manner prescribed by the said Acts. Provided always that nothing in this section contained shall apply to any of the said properties the ground surface of which is at a less height than twenty feet above the nearest point of the works of the Company as the same shall be constructed under any such property. Owners may be required to grant easements only under certain properties.

15. And whereas in the construction of the works hereby authorised or otherwise in the exercise of the powers of this Act it may happen that portions only of certain properties Owners may be required to sell parts only of cer-

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tain lands
and build-
ings.

shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the properties described in the Second Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the properties so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other persons interested therein by severance or otherwise.

Power to
Company to
enter upon
property for
survey and
valuation.

16. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be acquired or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Compensa-
tion in case
of recently
altered build-
ings acquired
by Company.

17. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and thirteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Power to
deviate later-
ally.

18. In the execution of the works by this Act authorised but subject to the provisions of this Act the Company may

deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon. Provided always that nothing in this section contained shall authorise the Company to deviate from the said lines so that any part of the works shall extend under the front wall (above the street level) of any house or building abutting upon any street under and along which the works are constructed unless such house or building shall have been purchased by the Company or the consent in writing of the owners lessees and occupiers thereof shall have been first obtained but this proviso shall not apply in any case where the Company shall acquire an easement or right of using the subsoil.

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19. In the execution of the works by this Act authorised but subject to the provisions of this Act the Company may deviate vertically from the levels thereof marked on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards.

Power to deviate vertically.

20. Except as hereinafter provided the Company shall not break up or disturb the surface of any street or road for the purpose of constructing the works by this Act authorised nor open or make any ventilators air shafts or other similar openings in any roadway or footway but nothing herein contained shall restrict the right of the Company to the use of streets or roads for purposes of ordinary traffic or of access to or in connection with any of their lands or buildings or take away or diminish any rights which they would have as owners or occupiers of lands or buildings abutting upon any street or road:

Restrictions on breaking up surface of streets.

Provided always that subject to the provisions of this Act the Company for the purpose of constructing the works by this Act authorised and the lifts escalators approaches and other works and conveniences connected therewith may enter upon and open up temporarily the surface of the ground and of the roadways and footways of Argyll Street at or near the junction thereof with Oxford Street (but not including any part of the last-named street) and of High Holborn at or near the junction of Little Turnstile therewith.

21. The Company on the one hand and the Metropolitan District Railway Company the City and South London Railway Company and the London Electric Railway Company or any of them on the other hand may enter into and carry into effect vary and rescind agreements with reference to the construction

Agreements as to erection of offices &c.

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A.D. 1914. — maintenance ventilation erection occupation and user of subways passages escalators offices and buildings for and in connection with carrying on the respective undertakings of the Company and the said companies or any of them and any agreement under this section may provide for any capital or annual or other payments under such agreement relating to any of the matters aforesaid.

Incorporating certain provisions of existing Acts.

22. The provisions contained in the sections of the Acts of 1891 1892 1902 1907 1909 and 1913 which are mentioned or referred to in the Third Schedule to this Act shall so far as applicable extend and apply to the works by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been expressly re-enacted in this Act with reference thereto respectively. Provided always that the said provisions shall be read and construed as if the mayor aldermen and commons of the city of London in common council assembled had been mentioned or referred to therein instead of the commissioners and as if metropolitan borough councils had been mentioned or referred to therein instead of boards of works or vestries and that in construing for the purposes of this Act section 85 of the Act of 1891 the expression “the protected companies” shall mean and include the councils of the metropolitan boroughs of Hammersmith and Saint Marylebone (in so far as those councils’ works for the supply of electrical energy are concerned) the London Electric Supply Corporation Limited the St. James and Pall Mall Electric Light Company Limited the Metropolitan Electric Supply Company Limited the Central Electric Supply Company Limited the Charing Cross West End and City Electricity Supply Company Limited the County of London Electric Supply Company Limited the City of London Electric Lighting Company Limited the Brentford Gas Company and the London Hydraulic Power Company. Provided also that sections 70 and 97 of the Act of 1891 and sections 21 subsection (3) 42 and 57 of the Act of 1913 shall for the purposes of their application to this Act be read and construed as if the works by this Act authorised had been mentioned or referred to therein instead of the railway or the railways and section 24 of the Act of 1909 shall for the purposes of its application to this Act be read and construed as if the works by this Act authorised had been mentioned or referred to therein instead of Subway No. 1.

23. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

A.D. 1914.
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For protec-
tion of Lon-
don County
Council.

If under the powers of this Act the Company construct or re-construct any station buildings or construct any subways the entrances to or exits from which communicate directly with any public street outside the city of London the entrances to and exits from such station buildings or subways shall be so designed and of such extent as to secure the least practicable inconvenience to the public traffic in the adjoining streets and the works shall not be commenced until plans thereof have been submitted to and approved by the council or in case the Company and the council fail to agree with respect thereto by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

24. For the protection of the council of the metropolitan borough of Holborn (in this section called "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect:—

For protec-
tion of Hol-
born Borough
Council.

- (1) The Company shall before entering upon opening breaking up or interfering with the surface of the street of High Holborn near to Little Turnstile give to the council twenty-one days' previous notice in writing of its intention so to do accompanied by plans sections and particulars of any borings or shafts to be carried out thereon and the time such temporary occupation of the street is required:
- (2) The Company shall not in the carrying out of the works in and under High Holborn authorised by this Act take use enter upon enclose or in any way alter or interfere with either temporarily or permanently any greater part of the surface of the said public way of High Holborn than that shown and coloured pink on the plan (in this section called "the agreed plan") which for the purpose of identification has been signed by Basil Mott on behalf of the Company and E. F. Spurrell on behalf of the council nor shall the Company open up for boring purposes a larger area of the public way of High Holborn than that

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shown on the agreed plan and described as “descending shaft” :

- (3) So much of the surface area coloured pink on the agreed plan as the Company shall require to use shall be properly and suitably enclosed by a proper and sufficient hoarding at least nine feet in height and such hoarding shall be erected and maintained and lighted to the reasonable satisfaction of the borough surveyor to the council and shall not be used for advertising purposes and such hoarding shall be removed as soon as the works for which it was erected have been completed. The Company shall affix to the hoarding such “warning notices” as may be required by the borough surveyor to the council :
- (4) No part of the said land so enclosed shall be used for the purposes of making or repairing any pipes machines tools or other apparatus goods or articles or otherwise as a workshop and no steam crane or other engine worked by steam power shall be used within or upon the said land nor shall there be any permanent structure apparatus or machinery thereon :
- (5) The Company shall maintain proper access to houses and properties adjacent to the land so enclosed and shall not interfere with the supply of gas water electricity and power to such houses and properties or the discharge of sewage from such houses and properties :
- (6) The Company shall not take any part of or interfere with the existing sanitary convenience in High Holborn belonging to the council or alter the level of the pavement of High Holborn :
- (7) The Company shall forthwith on the removal of the said hoarding (which removal shall not be later than twelve months after the erection thereof) at its own expense and to the reasonable satisfaction of the council fill in the shaft and make good the surface and pavement drains gullies sewers and other works of High Holborn to the conditions obtaining there prior to the execution by it of any works thereon under this Act :
- (8) The Company shall keep the council indemnified against all actions claims and demands whatsoever brought or

made against the council by any person or persons by or in consequence of the construction of any works to which this section applies : A.D. 1914.

- (9) The Company shall not deposit any subsoil or materials upon the public way of High Holborn (except upon the part coloured pink on the agreed plan) or any other public way within the borough of Holborn and shall not in the execution or completion of the works to which this section applies cause any nuisance or obstruction which shall not be reasonably necessary to any person using the streets roads or footways within the said borough and shall and will comply with all reasonable directions given to the Company by the council for preventing any interference with traffic and streets in the said borough during the construction of the said works :
- (10) The Company shall make full compensation to the council for any damage to or subsidence of any pavement sewer drain pipes or works under the jurisdiction or control of the council in or under the public way of High Holborn under which any of the said works are executed by the Company which during the construction or within the period of two years from the completion of such works may be caused by or in consequence of the construction or user of such works and the Company shall during the construction of the works if it be found necessary so to do and the council shall direct make any temporary or permanent diversions of any sewers drains pipes or works of the council (other than the sanitary convenience aforesaid) such work to be carried out in such manner as the said borough surveyor may direct at the expense of the Company :
- (11) The Company shall in respect of all lands acquired by them under the powers of this Act within the said borough be liable to pay all the rates and contributions leviable within the said borough as if the Company were assessed in respect of such lands in the valuation list in force for the parish or place within which such lands are situate at the time the Company acquire such lands and shall continue liable to and pay all rates and contributions until buildings

A.D. 1914.

are erected on such lands the rateable value of which is equal to or higher than the rateable value of the buildings on such lands at the time of the acquisition of such lands by the Company:

- (12) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 and any rules made thereunder shall apply in every such arbitration.

For protec-
tion of Ham-
mersmith
Borough
Council.

25. With reference to so much of the railways and works by this Act authorised as will be made and executed in the metropolitan borough of Hammersmith (in this section called "the borough") and for the protection of the mayor aldermen and burgesses of the borough (in this section called "the borough council") the following provisions shall unless otherwise agreed apply and have effect:—

- (1) Notwithstanding anything contained in this Act or shown upon the deposited plans and sections no part of the Subway No. 1 by this Act authorised underneath the pavement or roadway of Uxbridge Road shall be constructed within twenty feet of the surface of such pavement or roadway without the consent of the borough council which consent shall not be unreasonably withheld:
- (2) The provisions contained in section 22 (For protection of Hammersmith Corporation) of the Act of 1913 shall so far as applicable extend and apply to so much of the works by this Act authorised as are within the borough as fully and effectually to all intents and purposes as if those provisions had been expressly re-enacted in this Act Provided that section 22 of the Act of 1907 (which is incorporated by section 22 of the Act of 1913) shall for the purposes of its extension and application to this Act be read and construed as if the words "and maintained" were inserted after the word "constructed" and as if the words "or motor haulage or other wagon" were inserted after the words "steam roller" in subsection (c) of section 22 of the said Act of 1907:

(3) The Company shall not without the consent in writing A.D. 1914.

of the borough council take any part of or interfere with the borough council's electricity sub-station at the junction of Uxbridge Road and Goldhawk Road opposite the Company's Shepherd's Bush Station or without the like consent alter the level of any street within the borough or interfere with any sanitary convenience belonging to the borough council. Provided that all works necessitating the consent of the borough council under this section shall if such consent be given be done under the supervision and to the reasonable satisfaction of the borough council. The Company shall also make full compensation to the borough council for any damage or injury which may be caused by or in consequence of the act or default of the Company to any such sanitary convenience or sub-station of the borough council and the Company shall also reimburse the borough council any expenses which may be incurred by them consequent upon the removal and re-erection of any of their public lighting lamp standards for purposes of the Company's works:

(4) The Company shall not without the consent of the borough council which shall not be unreasonably withheld erect any hoarding on any part of any public footway in the borough nor shall the Company exhibit or permit to be exhibited upon any part of the said hoardings within view of any street within the borough any placards or advertisements other than those relating to railway purposes:

(5) If by reason of the execution of any of the works by this Act authorised within the borough the borough council shall necessarily incur any costs charges or expenses in the maintenance repair replacement or renewal of any street roadway or footway in the borough the Company shall repay the same to the borough council.

26. Notwithstanding anything contained in this Act or in the enactments incorporated therewith or applied thereto the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of Saint Marylebone (in this section called "the council") shall except

For protection of Saint Marylebone Borough Council.

A.D. 1914. — so far as may be otherwise agreed in writing between the council and the Company apply and have effect (that is to say) :—

- (1) The Company shall not place any hoarding in any part of any street within the borough of Saint Marylebone and for the purposes of this section the whole width of Oxford Street shall be deemed to be in the said borough :
- (2) In the construction of the Subways Nos. 2 and 2A authorised by this Act the Company shall not deviate upwards from the levels shown on the deposited sections without the consent of the council :
- (3) The Company shall make full compensation to the council for any damage to or subsidence of any streets vested in or repairable by the council or any lavatories or sanitary conveniences belonging to the council which may be caused by or in consequence of the exercise of any of the powers of this Act or any act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter :
- (4) The works of the Company shall be constructed and maintained by them of sufficient strength to support the traffic over and along the streets in the borough beneath which the works are constructed and also all such lavatories and sanitary conveniences and sewers and drains :
- (5) It shall be lawful for the surveyor or other officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any works in the borough executed under the powers of this Act during the execution thereof and the Company shall give to such surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of the works or other operations of the Company are attended with danger to any buildings sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions as may be considered necessary for the purpose of

preventing any damage or injury thereto and in the event of any difference arising between the council and the Company with reference thereto such difference shall be referred to arbitration : A.D. 1914.

- (6) If any extra expense be incurred by the council for the repair of the roads of the council by reason of the extraordinary traffic in the making or construction of the works authorised by this Act the Company shall repay the amount of such extra expense to the council :
- (7) The Company shall not deposit any subsoil or materials anywhere within the said borough so as to cause any obstruction to any persons using the roads or footways within the borough :
- (8) Any difference which may arise between the council and the Company under the provisions of this section shall unless otherwise agreed be referred to and determined by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

27. With reference to so much of the subway and works by this Act authorised as will be made in the city of Westminster (in this section called "the city") and for the protection of the council of the city (in this section called "the city council") the following provisions shall unless otherwise agreed apply and have effect:— For protection of Westminster City Council.

- (1) The Company shall not deposit any subsoil or materials anywhere within the city so as to cause any nuisance or obstruction to any person using the streets roads or footways in the city :
- (2) At least seven clear days before commencing any vertical borings from the surface of any part of any street in the city the Company shall serve notice in writing on the city council of their intention to commence the same and such notice shall describe the place or places at which such borings are intended to be made and if within seven days after the service of such notice any objection is made by the city council the matter shall unless otherwise agreed between them be determined by arbitration before the boring is commenced :

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- (3) It shall not be lawful for the Company to remove any soil or material from under any road within the city except such as must be excavated from the space to be occupied by the subways and approaches thereto:
- (4) Where any part of any road or footway in the city shall have been broken up or disturbed by the Company the Company shall make good the surface of such road or footway to the reasonable satisfaction of the city council:
- (5) The subways and other works in the city shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic and any other exceptional traffic lawfully using the streets within the city but also any steam roller or other apparatus that the city council or its contractors for the time being may use for repairing the streets or roadways under its control and the Company shall indemnify the city council against and make good to it all costs and expenses that the city council may reasonably incur or be put to by reason of any defect or insufficiency of strength of the subways or works or any neglect to properly and effectually maintain the same as aforesaid or in the construction or user of the subways and works:
- (6) The Company shall make full compensation to the city council for any damage to or subsidence of any road or footway sewer drain or other work vested in or under the jurisdiction or control of the city council which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the subways and works by the Company or at any time thereafter:
- (7) It shall not be lawful for the Company to place any hoarding in any part of any public road or footway in the city except in such position and of such extent as shall be agreed with the city council or failing agreement determined by arbitration and for such period as shall be reasonably necessary for carrying out the works by this Act authorised and no such hoardings shall be erected except under the provisions of the Metropolis Management Act 1855 and the

London Building Act 1894 (Local) and any Act or A.D. 1914.
Acts amending the same:

- (8) The Company before temporarily obstructing any road or footway in the city shall provide and until the obstruction is removed maintain to the reasonable satisfaction of the city council proper accommodation so far as is practicable for the traffic along such street and access to the houses and property therein and for preserving the uninterrupted supply of gas water and electricity to such houses and shall cause such obstruction to be properly fenced and lighted:
- (9) It shall be lawful for the engineer of the city council or his duly authorised assistant from time to time during the construction of the works to enter upon and inspect any works of the Company in the city and if he shall be of opinion that the construction of the works or other operations of the Company within the city are attended with danger to any sewer drain or work belonging to or under the jurisdiction and control of the city council the Company shall adopt such measures and precautions as may be considered necessary for the purpose of preventing any damage or injury thereto and in the event of any difference arising between the city council and the Company with reference thereto such difference shall be referred to arbitration:
- (10) If any difference shall arise between the city council or their engineer and the Company under any of the provisions of this section such difference shall be referred to an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to the reference.

28. For the protection of the British Electric Traction Company Limited (in this section referred to as "the lessees") being the lessees of a portion of the property numbered on the deposited plans 9 in the parish of St. Giles-in-the-Fields and Saint George Bloomsbury (which portion is in this section referred to as "the said premises") the following provision

For protec-
tion of
British Elec-
tric Traction
Company
Limited,

A.D. 1914. shall unless otherwise agreed in writing between the Company and the lessees apply and have effect (that is to say):—

Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not enter upon take use or interfere with any part of the said premises.

For protection of Holborn and Frascati Limited.

29. For the protection of Holborn and Frascati Limited (in this section called “the restaurant company”) the lessees of the building known as the Holborn Restaurant the following provision shall unless otherwise agreed between the restaurant company and the Company be observed and have effect (that is to say):—

In addition to the provisions of the Acts incorporated herewith with respect to compensation for lands taken or injuriously affected the Company shall make compensation to the restaurant company if the said restaurant shall be injuriously affected by reason of the working of the railway of the Company (including the working of lifts escalators and any other works in connection with the said railway) under the altered conditions authorised by this Act Provided that all claims for compensation under this section shall be made within two years from the time when the Company shall first open a station in the enlargement of tunnels and shall be settled by a single arbitrator under and subject to the provisions of the Arbitration Act 1889 save that where the parties do not concur in the appointment of an arbitrator the Board of Trade shall have the power of the court or a judge under section 5 of the said Act.

For protection of Cordwainers Company.

30. Notwithstanding anything in this Act contained or shown on the deposited plans or sections the following provisions for the benefit and protection of the master and wardens and commonalty of the mystery of Cordwainers of the city of London or other the owner or owners for the time being of the buildings and premises known as numbers 237 and 238 High Holborn (all of whom are in this section included in the expression “the owner”) shall unless otherwise agreed in writing between the Company and the owner be observed and have effect (that is to say):—

(1) In this section the expression “the protected premises” means the said buildings and premises known as

numbers 237 and 238 High Holborn or either of them and includes any vaults arches cellars works and conveniences belonging to or held with such buildings and premises or either of them: A.D. 1914.

- (2) The Company shall not construct any works or interfere either permanently or temporarily with any part of the subsoil underneath the protected premises at a depth of less than fifty feet from the surface of the roadway in High Holborn to the highest part of any such works or point of interference.

31. For the protection of Thomas Evelyn Baron Howard de Walden and Seaford his heirs and assigns (in this section referred to as "the owner") the following provisions shall apply and have effect (that is to say):— For protection of Lord Howard de Walden.

- (1) In the construction under Oxford Street of the Subways Numbers 2 and 2A by this Act authorised the Company shall not deviate upwards from the levels shown on the deposited sections thereof nor shall they construct any part of the said subways more than ten feet to the north of the centre line of Oxford Street without in each case obtaining the consent of the owner which consent shall not be unreasonably withheld:

- (2) Any difference which may arise between the Company and the owner under this section shall be determined by an engineer failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889.

32. The provisions of the section of this Act whereof the marginal note is "For protection of Lord Howard de Walden" shall also apply and have effect for the protection of Peter Robinson Limited their successors and assigns as if they were the owner referred to therein. For protection of Peter Robinson Limited.

33. For the protection of the London Electric Railway Company (in this section called "the London Electric Company") the following provisions shall unless otherwise agreed between the Company and the London Electric Company be observed and have effect (that is to say):— For protection of London Electric Railway Company.

A.D. 1914.
—

- (1) Notwithstanding anything shown upon the deposited plans and sections or contained in this Act the Company shall not enter upon take use or interfere with either permanently or temporarily the railways property and works of the London Electric Company without the consent in writing of the London Electric Company under their common seal:
- (2) The Company shall twenty-eight days before they commence the construction of any part of the works by this Act authorised which shall or may pass over under or adjacent to or within a distance of one hundred lineal feet of any part of the railways property and works of the London Electric Company furnish to the London Electric Company proper and sufficient plans sections and specifications of the works proposed to be made by the Company over under or adjacent to or within a distance of one hundred lineal feet of any part of the said railways property and works and such plans sections and specifications shall be settled and agreed upon between the respective engineers of the Company and the London Electric Company or in case of their failing to agree or of any difference arising between them the same shall be referred to arbitration as hereinafter provided and such works shall be carried into effect only in accordance with such agreement or determination and under the superintendence and to the reasonable satisfaction of the engineer of the London Electric Company and at the costs charges and expenses in all respects of the Company and when commenced shall be proceeded with without cessation:
- (3) The Company shall at all times maintain the works by this Act authorised over under or adjacent to the railways property and works of the London Electric Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the London Electric Company and if and whenever the Company fail so to do the London Electric Company may make and do in and upon as well the lands or property of the Company as their own lands and property all such works and things as the London Electric Company may reasonably

think requisite and the sum from time to time A.D. 1914.
certified by such engineer to be the reasonable
amount of their expenditure in that behalf shall be
repaid to them by the Company. The engineer of
the London Electric Company and his duly authorised
assistants shall at all reasonable times have free
access to the works by this Act authorised and every
reasonable facility shall be afforded them for the
inspection thereof and every reasonable notice which
they may give touching any defect or want of repair
shall immediately or as soon as possible be complied
with by the Company :

- (4) If during and by the execution of the works by this Act authorised the said railways property and works of the London Electric Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the London Electric Company may make good the same and recover the costs thereof against the Company :
- (5) The Company shall not in making and maintaining working or using the works by this Act authorised in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the London Electric Company's railways property and works or any part thereof or any traffic thereon or company or person using the same and if at any time or times hereafter the free and uninterrupted and safe user of the London Electric Company's railways property and works or any part thereof or any traffic thereon or company or person using the same shall be obstructed hindered or interfered with contrary to this enactment the Company shall forfeit and pay to the London Electric Company for each such obstruction one hundred pounds by way of ascertained damages for every hour during which each such obstruction hindrance or interference shall continue and so in proportion for any period of less than one hour :
- (6) All reasonable fees costs charges and expenses in respect of any of the matters in this section contained shall be borne and on demand paid by the Company who

A.D. 1914.

during the construction renewal or repair of the works by this Act authorised over under or adjacent to the London Electric Company's railways property and works shall bear and on demand shall pay to the London Electric Company the reasonable costs charges and expenses of their engineer and assistants and the expense of the employment by the London Electric Company of a sufficient number of inspectors or watchmen to be appointed by them for watching the said railways property and works with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger or accident from any of the operations of the Company or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise:

- (7) If at any time the engineer of the London Electric Company shall be of opinion that the construction or maintenance of the works or other operations of the Company are or may be attended with danger to any portion of their railways property and works the Company shall forthwith adopt such additional measures and precautions as the engineer of the London Electric Company may consider necessary for the purpose of preventing damage or injury thereto:
- (8) In the event of the London Electric Company desiring to alter or extend their existing Oxford Circus or Holborn Stations the Company shall give to the London Electric Company every reasonable facility for the execution of such alteration or extension:
- (9) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the London Electric Company all costs losses damages charges and expenses which may be occasioned to the London Electric Company or to any of their property or works or to the traffic on their railways or otherwise by reason of the construction or failure of the works by this Act authorised and the works in connection therewith or of any act or omission of the Company or of any of the persons in their employ or of their contractors or others and the Company shall

effectually indemnify and hold harmless the London Electric Company from all claims and demands upon or against them by reason of such construction or failure or of any such act or omission : A.D. 1914.

- (10) The fact that any work or thing has been done or executed in accordance with any plan not objected to or approved by the London Electric Company or with any requirement of the London Electric Company or under the superintendence of their engineer or in accordance with any direction or award of an arbitrator shall not excuse the Company from any liability for damage caused to the London Electric Company's railways property and works or affect any claim by the London Electric Company in respect of any obstruction or hindrance of or interference with any traffic on or company or person using the railways or works of the London Electric Company or demands of any company or person using the same :
- (11) Any question by this section referred to arbitration and any difference which may arise between the Company and the London Electric Company as to the reasonableness of any requirement of that company or of their engineer or otherwise under the provisions of this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such determination.

34. For the protection of the City and South London Railway Company (in this section called "the City Company") the following provisions shall unless otherwise agreed between the Company and the City Company be observed and have effect (that is to say) :—

For protection of City and South London Railway Company.

- (1) In this section the expression "the Bank Station" means and includes the Bank Station of the City Company and the railway subways lifts staircases approaches and works of the City Company connected therewith :
- (2) Notwithstanding anything shown upon the deposited plans and sections or contained in this Act the Company

A.D. 1914.

shall not enter upon take use or interfere with either permanently or temporarily the Bank Station without the consent in writing of the City Company under their common seal but nothing in this subsection contained shall be deemed to prohibit the Company from reconstructing so far as may be necessary any part of the subway connected with the Bank Station which is the subject of an agreement dated the twenty-eighth day of July one thousand eight hundred and ninety-eight and made between the Company of the one part and the City Company of the other part or acquiring an easement only under any works lands and property of the City Company which may be necessary for constructing the works by this Act authorised in accordance with the provisions of this section Provided that at all times during the reconstruction of the said subway the means of exchange for passengers at the low level between the Bank Stations of the respective companies shall be kept open :

- (3) The Company shall twenty-eight days before they commence the construction of that part of the works by this Act authorised which shall or may be constructed under over or adjacent to the Bank Station and for a distance of one hundred lineal feet on each side thereof furnish to the City Company proper and sufficient plans sections and specifications of the works proposed to be made by the Company under over or adjacent to the Bank Station and for a distance of one hundred lineal feet on each side thereof and such plans sections and specifications shall be settled and agreed upon between the respective engineers of the Company and the City Company or in case of their failing to agree or of any difference arising between them the same shall be referred to arbitration as hereinafter provided and such works shall be carried into effect only in accordance with such agreement or determination and under the superintendence and to the reasonable satisfaction of the engineer of the City Company and at the costs charges and expenses in all respects of the Company :

- (4) The Company shall at all times maintain the works by this Act authorised under over or adjacent to the Bank Station in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the City Company and if and whenever the Company fail so to do the City Company may make and do in and upon as well the railway and works of the Company as their own railway and works all such works and things as the City Company may reasonably think requisite and the sum from time to time certified by such engineer to be the reasonable amount of their expenditure in that behalf shall be repaid to them by the Company: A.D. 1914.
- (5) The engineer of the City Company and his duly authorised assistants shall at all reasonable times have free access to the works by this Act authorised for a distance of one hundred lineal feet on each side of the Bank Station and every reasonable facility shall be afforded them for the inspection thereof and every reasonable notice which they may give touching any defect or want of repair shall immediately or so soon as possible be complied with by the Company:
- (6) If during and by the execution of the works by this Act authorised the railway of the City Company or the Bank Station shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the City Company may make good the same and recover the costs thereof against the Company:
- (7) The Company shall not in making and maintaining the works by this Act authorised in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the City Company's railway and works or any traffic thereon and if at any time or times hereafter the free and uninterrupted and safe user of the City Company's railway and works or any traffic thereon shall be obstructed hindered or interfered with contrary to this enactment the Company shall forfeit and pay to the City Company for each such obstruction one hundred pounds by way of ascertained damages for every hour during which each such

A.D. 1914.
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obstruction hindrance or interference shall continue and so in proportion for any period of less than one hour :

- (8) All reasonable fees costs charges and expenses in respect of any of the matters in this section contained shall be borne and on demand paid by the Company who during the construction renewal or repair of the works by this Act authorised under or over or adjacent to the Bank Station shall bear and on demand shall pay to the City Company the reasonable costs charges and expenses of their engineer and assistants and the expense of the employment by the City Company of a sufficient number of inspectors or watchmen to be appointed by them for watching their railway and works and conveniences connected therewith with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger or accident from any of the operations of the Company or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise :
- (9) If at any time the engineer of the City Company shall be of opinion that the construction or maintenance of the works or other operations of the Company are or may be attended with danger to any portion of the City Company's railway or of the Bank Station the Company shall forthwith adopt such additional measures and precautions as the engineer of the City Company may reasonably consider necessary for the purpose of preventing damage or injury thereto :
- (10) Notwithstanding anything contained in this Act or the agreements dated the twenty-eighth day of July one thousand eight hundred and ninety-eight and the second day of July one thousand nine hundred and nine made between the Company of the one part and the City Company of the other part the Company shall not execute any work or do any act or thing which will in any way prevent or interfere with the full use and enjoyment (in accordance with the terms of the said agreements) by the City Company and the public using their railway of the joint subways at the Bank Station or do or cause or permit to be

done anything whereby the expense of maintaining working and managing the said joint subways or the contribution of the City Company towards such expense is increased :

A.D. 1914.
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- (11) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the City Company all costs losses damages charges and expenses which may be occasioned to the City Company or to any of their works or property or to the traffic on their railway or otherwise by reason of the construction or failure of the works by this Act authorised or of any act or omission of the Company or of any of the persons in their employ or of their contractors or others and the Company shall effectually indemnify and hold harmless the City Company from all claims and demands upon or against them by reason of such construction or failure or of any such act or omission :
- (12) The fact that any work or thing has been done or executed in accordance with any plan not objected to or approved by the City Company or with any requirement of the City Company or under the superintendence of their engineer or in accordance with any direction or award of an arbitrator shall not excuse the Company from any liability for damage caused to the railway of the City Company or to the Bank Station or affect any claim by them in respect of any obstruction or hindrance of or interference with any traffic thereon or demands of any other company person or persons using the same :
- (13) Any question by this section referred to arbitration and any difference which may arise between the Company and the City Company as to the reasonableness of any requirement of the City Company or of their engineer or otherwise under the provisions of this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

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For protection of London United Tramways Limited.

35. Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not under the powers of this Act enter upon take use or in any way interfere with any tramways or works belonging to or used by the London United Tramways Limited.

For protection of Metropolitan Water Board.

36. The provisions contained in section 30 (For protection of Metropolitan Water Board) of the Act of 1913 shall so far as applicable extend and apply to the works by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been expressly re-enacted in this Act with reference thereto. Provided that notwithstanding anything in the said section contained the Company may in constructing Subways Numbers 2 and 2A or any works connected therewith raise sink or otherwise alter the position of any apparatus of the Metropolitan Water Board so as to leave over such apparatus a covering of either less than three feet or more than five feet so long as the Company to the reasonable satisfaction of the engineer of the said Board in any case where the covering is less than three feet protect such apparatus from frost or injury by artificial covering or by the substitution of steel pipes embedded in concrete for cast-iron pipes and in any case where the covering is more than five feet provide special means of access to such apparatus.

Power to raise additional capital.

37. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole three hundred and seventy-two thousand pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

New shares or stock to be subject to same incidents as other shares or stock.

38. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital and

the capital in new shares or stock so created shall subject as hereinafter provided form part of the capital of the Company. A.D. 1914.

39. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preferential shares or stock.

40. The provisions contained in sections 14 to 21 both inclusive of the Act of 1891 with reference to the division of the shares in the capital by that Act authorised into half-shares shall extend and apply to the shares in the additional capital by this Act authorised issued as ordinary shares as if the same had been re-enacted in this Act with reference thereto.

Extending to additional capital provisions of Act of 1891 as to dividing shares.

41. The Company may in respect of the additional capital of three hundred and seventy-two thousand pounds which they are by this Act authorised to raise borrow on mortgage of the undertaking any sums not exceeding in the whole one hundred and twenty-four thousand pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such capital as is raised by means of shares has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of the said additional capital as is raised by means of stock is fully paid up and that such shares or stock as the case may be were issued and to the extent aforesaid paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as such additional capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

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For appointment of a receiver.

42. Section 51 of the Act of 1913 with reference to the appointment of a receiver is hereby repealed and the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock.

43. The Company may create and issue debenture stock subject to the provisions of section 24 of the Act of 1891. Notice of the effect of that enactment shall be endorsed on all mortgages and certificates of debenture stock.

Receipt in case of persons not sui juris.

44. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to issue stock warrants and debenture stock certificates to bearer.

45. The Company may with respect to the whole or any portion of fully-paid stock or share capital or debenture stock created or to be created by them and subject to such regulations as may from time to time be made by the Company issue under their common seal warrants and certificates (hereinafter severally referred to as "a stock warrant to bearer" and "a debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the stock or shares or debenture stock as the case may be therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of interest or dividends as the case may be on the stock or shares or debenture stock included in the warrant or certificate:

Provided always that nothing in this Act contained shall require the holder of any stock shares or debenture stock issued prior to the passing of this Act to accept a stock warrant to bearer or a debenture stock certificate to bearer (as the case may be) for such stock shares or debenture stock or any part thereof.

Section 29 of the Companies Clauses Act 1863 shall not apply to a debenture stock certificate to bearer.

Effect of stock warrants and debenture

46. A stock warrant to bearer and a debenture stock certificate to bearer shall entitle the bearers thereof respectively to the stock or shares or debenture stock therein specified and such

stock shares or debenture stock may be transferred by delivery of the warrant or certificate. A.D. 1914.

stock certificates.

47. On the issue of a stock warrant to bearer or a debenture stock certificate to bearer in respect of any portion of stock or share capital or debenture stock the Company instead of making in the register of stockholders or shareholders or shareholders' address book or in the register of debenture stockholders with reference to such portion of stock or share capital or debenture stock the entries provided for by the Companies Clauses Consolidation Act 1845 or by any other Act or Acts relating to the Company shall strike out of such register of stockholders or shareholders and the shareholders' address book or of the register of debenture stockholders (as the case may be) the name of the person (if any) then entered therein as holding such stock shares or debenture stock (as the case may be) and the other particulars with reference to such stock shares or debenture stock contained in such register or address book and shall enter in the registers the following particulars:—

Entries in register on issue of stock warrants or debenture stock certificates.

- (i) The fact of the issue of the stock warrant to bearer or debenture stock certificate to bearer :
- (ii) A statement of the amount of the portion of stock or share capital or debenture stock (as the case may be) included in the warrant or certificate :
- (iii) The date of the issue of the warrant or certificate.

The provisions of the Companies Clauses Consolidation Act 1845 or of any other Act or Acts relating to the Company as to the register of holders of shares as to the shareholders' address book as to certificates of shares and transfer and transmission of shares and as to certificates and registration of debenture stock shall not apply in the case of a stock warrant to bearer or a debenture stock certificate to bearer respectively.

48. The bearer of a stock warrant to bearer or a debenture stock certificate to bearer shall—

Registration of stock or debenture stock on surrender of warrant or certificate.

- (A) On surrendering for cancellation the warrant or certificate with all coupons issued in respect thereof and for the time being outstanding ; and
- (B) Complying with such regulations as may from time to time be made by the Company for the purpose of enabling the Company to ascertain the name address

A.D. 1914.

and description of the bearer and for obtaining a specimen of his signature; and

(c) Paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of the surrender; and

(d) Paying to the Company such fee not exceeding five shillings as the Company may prescribe;

be entitled to have his name entered in the register of stockholders or shareholders or in the register of debenture stockholders as the case may be.

As to rights of holders of stock warrants to bearer.

49. The bearer of a stock warrant to bearer shall subject to the provisions of this Act be deemed to be a stockholder or shareholder of the Company for all purposes. Provided that the stock or shares specified in a stock warrant to bearer shall not be taken into account in determining the qualification of the bearer of such warrant for being a director of the Company.

On what conditions holders of stock warrants may vote.

50. No person shall as bearer of a stock warrant to bearer be entitled to attend or vote or exercise in respect thereof any of the rights of a member at any meeting of the Company or to sign any requisition for or aid in calling any extraordinary meeting unless three days at least before the date appointed for the meeting in the first case and unless before the requisition is lodged at the office of the Company in the second case he shall have deposited the stock warrant to bearer at the office of the Company or such other place as the directors appoint together with a statement in writing of his name and address and unless the stock warrant to bearer shall remain so deposited until after the meeting or any adjournment thereof has been held. The names of more persons than one as holder of a stock warrant shall not be received.

Certificates of deposit of stock warrants.

51. There shall be delivered to the person so depositing a stock warrant to bearer prior to any meeting a certificate stating his name and address and the amount of stock or shares represented by the stock warrant to bearer so deposited by him and such certificate shall entitle him to attend and vote at such meeting or any adjournment thereof in the same way as if he were a registered stockholder or shareholder of the Company in respect of the stock or shares specified therein and upon such person delivering up the certificate to the Company the stock warrant to bearer in respect whereof it was given shall be returned to him.

52. No person as bearer of any stock warrant to bearer shall be entitled to exercise any of the rights of a member or stockholder or shareholder of the Company (save as hereinbefore expressly provided in respect of meetings) without producing the warrant and stating his name and address.

A.D. 1914.
Stock war-
rants to be
produced.

53. Any notice or intimation required to be given to stockholders or shareholders of the Company under the provisions of the Companies Clauses Consolidation Act 1845 or any Act amending the same or any other Act relating to the Company may in the case of any bearers of stock warrants to bearer be given by advertising the notice once in each of two newspapers published in London such advertisements to be inserted within the period (if any) prescribed for the giving of such notice.

As to notices
to holders of
stock war-
rants.

54. If and so often as any application shall be made to Parliament for an Act affecting the rights of the holders of any class of debenture stock which shall for the time being have been issued by the Company and be outstanding and in respect whereof or any part whereof debenture stock certificates to bearer shall be then outstanding the following provisions shall have effect (that is to say):—

As to appli-
cations to
Parliament
affecting
debenture
stockholders.

(1) In this section the following expressions shall have the following meanings unless repugnant to the context:—

“The debenture stock” means the debenture stock of such class as last aforesaid for the time being issued and outstanding;

“The bearer debenture stock” means such of the debenture stock as shall for the time being be comprised in debenture stock certificates to bearer;

“Bearer certificates” means the debenture stock certificates to bearer for the time being issued in respect of the debenture stock or any part thereof and outstanding;

“The bearers” means the bearers for the time being of the bearer certificates and “bearer” means one of the bearers;

“Meeting” means a meeting of registered holders and bearers under this section;

“Voting certificate” means a voting certificate issued in pursuance of this section:

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- (2) Any meeting convened for the purpose of approving of any such application to Parliament as aforesaid or any Bill for such Act as aforesaid shall so far as the bearers are concerned be duly convened by advertising the notice convening the same once in each of two newspapers published in London and once in each of the same two newspapers in the next week following the publication of the first advertisement provided the same shall be convened for a date not less than twenty-one days or more than forty days after the last insertion of the advertisement thereof in such two newspapers. It shall also be lawful for but not obligatory on the Company to advertise such notice as last aforesaid in any other newspaper or newspapers either in the United Kingdom or abroad. Every such advertisement as aforesaid shall state the name and address of a bank in London and if the Company think fit so to do but not otherwise of any other bank or banks either in the United Kingdom or abroad at which the bearers may not less than forty-eight hours before the time for holding the meeting or any adjournment thereof deposit their bearer certificates and obtain voting certificates in respect thereof:
- (3) At a meeting or any adjournment thereof the bearer of a bearer certificate shall be treated as the legal holder thereof whether such bearer shall or shall not be the owner thereof and for all the purposes of the meeting or any adjournment thereof the bearer of a voting certificate issued under this section in respect of a bearer certificate shall be deemed to be the bearer of such bearer certificate:
- (4) Prior to convening a meeting the Company shall make such arrangements as will entitle any bearer who shall not less than forty-eight hours before the time for holding such meeting or any adjournment thereof deposit a bearer certificate in the bank or one of the banks to be named for that purpose in the notice convening the meeting to receive from the bank with whom such deposit is made (A) a receipt for the bearer certificate so deposited such receipt to be in such form as (subject to the provisions of the next succeeding subsection) will entitle the bearer thereof

to have the bearer certificate in respect of which the same was given delivered to him in exchange therefor by the bank with whom such bearer certificate was deposited whether such bearer be or be not in fact the true owner of such bearer certificate and (B) a voting certificate which receipt and voting certificate shall be signed by some official of such bank and shall specify the denoting number of the bearer certificate so deposited and the amount of the debenture stock comprised therein. A voting certificate shall not except as provided by subsection (3) of this section confer any title on the holder thereof to the bearer certificate or to the debenture stock referred to therein :

- (5) A bearer certificate deposited as last aforesaid shall be deposited subject to (amongst others) the condition that the same shall be retained by the bank with which the same is so deposited until the meeting has been held or abandoned or until the receipt given by such bank therefor and the voting certificate issued by such bank in respect thereof shall be delivered to such bank whichever shall be the earlier.

55. If a stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate is lost or destroyed then upon—

Loss or destruction of stock warrants or certificates or coupons.

- (A) Proof to the satisfaction of the directors of the ownership of such lost or destroyed warrant or debenture stock certificate or coupon or voting certificate and of the loss or destruction thereof; and
- (B) Such indemnity to the Company and the directors as the directors deem adequate being given; and
- (c) Payment of all stamp and other Government duties (if any) payable in respect of the new warrant or certificate or coupon together with a fee of five shillings;

a new stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate as the case may be in lieu of the warrant debenture stock certificate or coupon or voting certificate so lost or destroyed shall be issued by the Company and in the case of the issue of a new stock warrant to bearer or debenture stock certificate to bearer or coupon an

A.D. 1914. entry of such issue shall be made by the secretary in the register of stockholders or shareholders or register of debenture stockholders.

As to joint stockholders or shareholders.

56. If several persons be or claim to be jointly entitled to the stock or shares specified in a stock warrant to bearer or a debenture stock certificate to bearer then as between the Company on the one hand and such persons on the other hand—

(A) One only of such persons shall be deemed the sole proprietor of such stock or shares; and

(B) In case of any disputes between such persons such one of them as shall be the actual holder of the stock warrant to bearer or the debenture stock certificate to bearer shall be deemed such sole proprietor.

Trustees unless expressly authorised not empowered to hold bearer securities.

57. A trustee unless authorised by the terms of his trust shall not apply for or hold a stock warrant to bearer or debenture stock certificate to bearer issued under the authority of this Act but nothing in this section shall impose upon the Company or any person authorised to issue any such stock warrant to bearer or debenture stock certificate to bearer any obligation to inquire whether the person applying for a stock warrant to bearer or debenture stock certificate to bearer is or is not a trustee or being a trustee is or is not so authorised as aforesaid or subject them to any liability in the event of their issuing to a trustee a stock warrant to bearer or a debenture stock certificate to bearer nor invalidate a stock warrant to bearer or debenture stock certificate to bearer if issued to a trustee.

Endorsement of provisions on stock warrants to bearer or debenture stock certificates to bearer.

58. A copy of the sections of this Act of which the marginal notes are “Registration of stock or debenture stock or surrender of warrant or certificate” “As to applications to Parliament affecting debenture stockholders” and “Trustees unless expressly authorised not empowered to hold bearer securities” shall to the extent to which the same respectively relate to stock warrants to bearer or to debenture stock certificates to bearer be endorsed on every stock warrant to bearer or debenture stock certificate to bearer which shall be issued by the Company and in the case of debenture stock certificates to bearer in addition to the declaration required by section 14 of the *Railway Companies’ Securities Act 1866*.

Application of certain provisions of Companies

59. Any person who shall commit in relation to a stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate issued or purporting to be issued in

pursuance of this Act any of the offences which are specified in section 38 of the Companies (Consolidation) Act 1908 in relation to share warrants issued in pursuance of that Act shall be liable to the penalties imposed by that section as if he had committed the offence or offences in relation to a share warrant issued in pursuance of that Act.

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1908.

60. The Company may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they are by any of their Acts authorised to raise and which may not be required for the purposes of those Acts respectively.

Power to
apply funds.

61. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of the Central London Railway Acts 1891 to 1914 to which capital is properly applicable.

Application
of moneys.

62. The Metropolitan District Railway Company the City and South London Railway Company and the London Electric Railway Company respectively may apply to any of the purposes of this Act in which they are interested and to which capital is properly applicable any moneys which they now have in their hands or which they may be authorised to raise by any of the Acts relating to the said companies respectively and which may not be required for the purposes to which they are by those Acts or any of them made specially applicable.

Power to
other com-
panies to
apply funds.

63. Notwithstanding anything in this Act or in the Central London Railway Acts 1891 to 1913 or in any Act or Acts incorporated therewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not exceeding four pounds per centum per annum as the directors may determine to any holder of shares or stock in so much of the capital of the Company as is for the time being raised for the purposes of the works by this Act authorised on the amount from time to time paid up on the shares or stock held by him from the respective times of such payments until the expiration of a period of five years from the passing of this Act or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

Power to
pay interest
out of capi-
tal during
construction.

- (A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two-thirds at

A.D. 1914.

least of the capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders or stockholders who or whose executors administrators or assigns are legally liable for the same :

- (B) No such interest shall accrue in favour of any shareholder or stockholder for any time during which any call on any of his shares or stock is in arrear :
- (c) The aggregate amount to be so paid for interest shall not exceed thirty-five thousand pounds and the amount so paid shall not be deemed capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :
- (D) Notice that the Company have power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares or stock and in every certificate of such shares or stock which may be issued by or on behalf of the Company prior to the expiration of the period for which the directors of the Company may have determined that such interest shall be paid :
- (E) The yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder or stockholder on the amount of the calls made in respect of the shares or stock held by him but nothing in this Act shall prevent the Company from paying to any shareholder or stockholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for
future Bills
not to be
paid out of
capital.

64. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act

authorising the Company to construct any railway or to execute any other work or undertaking. A.D. 1914.

65. Nothing in this Act contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

66. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments (including the subsoil and under-surface of any street road or footway) or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give). Crown rights.

67. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

DESCRIBING PROPERTIES UNDER WHICH EASEMENTS MAY
BE TAKEN.

Area.	Nos. on deposited Plans.
SUBWAY No. 2.	
City of Westminster -	33 35 36 37 38 39 40 41 42.
SUBWAY No. 2A.	
City of Westminster -	33 35 36 37 38 39 40 41 42.
ENLARGEMENT OF TUNNELS.	
Borough of Holborn -	3 4 5 6 7 9 10 11 12 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 33 34 35 37 38.
SUBWAY No. 3.	
City of London -	4.

SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY MAY BE TAKEN.

Area.	Nos. on deposited Plans.	Description of Property.
SUBWAY No. 2.		
City of Westminster -	36	House shops offices entrance to Oxford Circus Avenue and premises.
	38	Public-house forecourt and premises.
ENLARGEMENT OF TUNNELS.		
Borough of Holborn -	10	House shop offices and premises.
	11	House shop offices forecourt and premises.
	12	House shop offices forecourt and premises.
	14	House shop yard and premises.
	15	Public-house yard and premises.
	16	House shop yard and premises.
	19	House workshops and premises.

THIRD SCHEDULE.

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NUMBERS AND MARGINAL NOTES OF SECTIONS INCORPORATED.

ACT OF 1891.

- 34 Persons authorised to convey lands may grant easements.
- 43 Provision as to cellars under streets not referenced.
- 48 As to carting materials and soil outside the city.
- 49 For the protection of sewers of the council.
- 51 Buildings not to be brought beyond general line.
- 52 Walls of buildings to be made good.
- 53 Inspection of works by council.
- 54 Exhibition of placards in the county of London.
- 55 For protection of sewers of district boards and vestries.
- 67 For protection of sewers in the city of London.
- 69 Deposit of objects of interest.
- 70 As to carting materials and soil within the city.
- 85 General provisions for protection of water gas hydraulic power and electric companies.
- 86 For protection of the Gas Light and Coke Company.
- 97 Company empowered to underpin or otherwise strengthen houses near railway.

ACT OF 1892.

- 33 Company to indemnify the corporation and the Commissioners.

ACT OF 1902.

- 7 Power to retain sell &c. lands.
- 10 Agreements as to stations &c.

ACT OF 1907.

- 21 (Subsection 1) For protection of London County Council.
- 24 For protection of Metropolitan Water Board.

ACT OF 1909.

- 17 As to removal of letter boxes.
- 24 For protection of London County Council's subways and tramways.
- 27 As to erection of buildings.
- 34 Amendment of section 10 of Act of 1902.

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ACT OF 1913.

- 13 Costs of arbitration in certain cases.
- 18 For protection of Commissioner of Police.
- 21 (Subsections 3 and 5) For protection of London County Council.
- 42 Agreements with local authorities &c.
- 57 Power to charge interest on debenture stock out of capital during construction.

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